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Saisine: the Unperformed Duty of Determination, the Architecture That Prevents It, and the Office at its Apex

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Submitted by:	The Meinhardt Initiative
Companion record:	*Interregnum Nullificans* — statement of record, facts and dates only
Ombudsman Complaint:	OMB-260331-CSD014 (maladministration finding sought)
PETI Petition:	Article 227 TFEU (filed informally March 2026)
Public Repository:	dr-bosch.github.io/nullification-loops

Transmitted to: the offices and committees named in the Active References below.

Status. No proceedings are on foot against the Taoiseach, the Department of Enterprise, Tourism and Employment (DETE) or the Joint Committee on Foreign Affairs and Trade (JCFAT). Where this Saisine says a mandamus or certiorari application is reserved, it means exactly that: prepared, not filed.

Preamble

There is a kind of governance that perfects its own forms while losing its subject. It learns to receive, to acknowledge, to refer, and to close. All of it is legally sound. Nothing breaks. Nothing can be pointed to as having broken. The process runs, the letters issue, the file thickens, and twenty years pass. What was never produced was not a form. It was a decision.

A system of this kind does not fail from bad faith. It fails from an atrophy of function that its own mechanics cannot detect, because its mechanics were never calibrated to the function — only to the form. The weighing is still being done. The ledger is still being updated. The mechanism runs with the same fidelity it always had. The purpose that originally justified the mechanism has become invisible to it.

The obligation of applied knowledge is older and simpler than any statutory duty: the holder of knowledge is obliged to put it in service of the common welfare — not to file it, not to acknowledge it, but to engage with it on its own terms, in the open, with reasons that can be tested. A system that

receives knowledge and routes it through protocols designed to manage correspondence is not performing that obligation. It is performing something that, from outside, looks very like it.

The claims in this Saisine are not extraordinary. They are documented, dated, and referenced. The evidence is the record; the record is the corpus; and what the corpus asks of the State is not credulity, but engagement.

Niklas Luhmann diagnosed the structural condition this record exhibits. A legal and administrative system is autopoietic: it reproduces itself by processing communications in its own forms, according to its own codes, without needing to look outside itself at the material conditions that originally justified those codes. Correspondence is the code. An acknowledgement is a valid output. A closure letter is a valid output. The question *behind* the correspondence — the question the correspondence was about — is not itself a unit the code processes. It circulates: acknowledged, referenced, closed, but never converted into what it asked for.

Alexandre Kojève drew a distinction that cuts to the structural condition with some precision. Constitutional law governs the perimeter — the allocation of competence between offices, the question of which body may act in which domain. Administrative law governs something categorically different: the requirement that a body which *may* decide actually *does*, in a concrete and binding way, for the matters properly before it. These two aspects can come apart. A system can be in complete constitutional order — every office correctly confined within its remit, no jurisdiction exceeded — while producing total administrative paralysis, because nothing in the constitutional layer requires that any fragment of competence be converted into a determination. That is, with some precision, the condition this record documents.

The reading that presents itself at the far end of the interpretive spectrum — that nineteen years of non-determination reflects managed outcome rather than accumulated accident — is one the record cannot exclude, and one this document does not require. The constitutional analysis holds whether every actor was scrupulous, well-resourced, and correctly confined to their own remit, or whether something else was occurring. The Constitution does not adjudicate motive.

> It asks whether the duty was discharged.

It was not.

The soft-doctrine of recognition and duty: the diplomacy. This is a perfect example of Castiglione's *sprezzatura*, i.e. the understatement: in this case, to the exclusion of reason.

I. Summary and Bridge

This Saisine carries the argument. The facts it argues from are set out once, with dates, references and recorded output only, in *Interregnum Nullifican*, and are cited here by Part and Annex rather than restated.

In May 2006, a body of Operations Research material, approximately 26 kilograms of printed work, was presented to Irish State authorities. It reached the Department of Foreign Affairs (DFA) and Irish Aid in 2008–09, where an Irish Aid officer undertook in writing to report to the Minister's Office, and the Minister for Foreign Affairs personally undertook, seven months later, to follow up. Neither undertaking produced a recorded act. Since then, across three dual-use regulatory regimes, six Taoisigh and twenty years, no body has issued a reasoned determination of the material's status. Where a body did act, it acted to close: a Department of Defence letter relying on a conclusion that had been formally rebutted and never defended; a committee decision citing no rule; a Clerk's letter ratifying a determination she had not reviewed. Thirteen reference-numbered acknowledgements have issued since June 2024 (*Interregnum Nullificans*, Annex A). None has produced a determination.

This Saisine states plainly what the companion record does not: the State failed to perform two written and verbal undertakings given by its own officers; the Department of Defence closed a file by relying on a position it knew to be contested; the architecture that was supposed to assemble a determination was never built, although the State has since built an equivalent architecture, for a different purpose, inside the same Department. The Government that now holds the unperformed 2009 undertaking is the Government the sitting Taoiseach composes. Part III states why that is not incidental.

Three limits are fixed at the outset, because an accusation is worth only what the record supports.

- No claim is made that the material is controlled. That is the question put to DETE by the Act s.13 request of September 10th, 2026, and it is a question, not an assertion in either direction (*Interregnum Nullificans*, Part II).
- No claim is made about any individual's state of mind as an established fact. Misfeasance in public office is pleaded, where it is pleaded at all, as a hypothesis the DFA internal file alone can settle, not as a finding this Saisine makes for itself (Part II.B, below).
- No claim is made that DFA held, lost or transferred a competent-authority designation. DFA has never held that designation. Its position in this record rests on its own undertakings and its own remits, set out in Part II.A.

What is claimed, plainly: the State failed to perform commitments its own officers made in writing and in person; three departments each confirmed their competence over a fragment of the question and none assembled the whole; the bodies that closed the file did so on grounds that do not survive their own record; and the office constitutionally positioned to have supplied the missing

coordination did not supply it, across three changes of its occupant, while the person who holds it today is the same person who gave the original undertaking.

II. The Architecture of Non-Determination

II.A The documented sequence, recast

Interregnum Nullificans records the sequence as dated fact, without characterising it. This Part draws the accusation the facts support, against institutions and offices, not against the private state of mind of any named officer.

The State received the matter and did not route it to a destination. From May 2006 the material was before the Department of Defence, the Office of Emergency Planning and the Department of the Taoiseach. From September 2008 it was before the Department of Foreign Affairs, through the Minister's constituency office and then his Department. In January and February 2009 an Irish Aid officer committed in writing to report the discussion to the Minister's Office; the Minister's private secretary reiterated that commitment by telephone after the presentation. In September 2009 the Minister personally committed, in person, to follow up. Seven written requests for the promised report followed between May 2009 and February 2011. None is recorded as answered.

The State restructured the licensing function and did not audit what it was carrying forward. On August 22nd, 2024, the Control of Exports Act 2023 commenced and restated DETE as the national competent authority. The commencement is not, on this record, the point at which a designation moved; DETE held the licensing function before and after. It is the point at which the State had the opportunity to ask what unresolved matters were on its books, and the record identifies no mechanism by which that question was asked.

The State's own closures did not survive its own record. On 4 February 2026 the Department of Defence closed its file (DOD-MO-01201-2025) by relying on a conclusion from the Office of Emergency Planning from June 1st, 2025, that had been contested in writing on June 3rd, 2025, and never defended. The closure letter does not mention the rebuttal. Neither the OEP nor the Department of Defence holds a competent-authority function under Regulation (EU) 2021/821; a department with no standing to answer the underlying question answered it by proxy, on authority it did not hold, relying on a position its own addressee had already shown to be unsound.

The State's parliamentary channels confirmed the pattern rather than correcting it. Eighteen communications to the Joint Committee on Public Petitions drew no acknowledgement. The Joint Committee on EU Affairs deleted correspondence after declining it. A Seanad committee secretariat declined a submission the same day it arrived, citing no Standing Order and recording no committee vote.

The Joint Committee on Foreign Affairs and Trade's letter of July 9th, 2026, invoking section 92 of the Houses of the Oireachtas (Inquiries, Privileges and Procedures) Act 2013, a privilege and immunity provision, identifies no document, cites no subsection, and ends engagement. Both Clerks of the Houses determined, on the same day, that a 226-page complaint was frivolous or vexatious.

This is not pleaded as the coordinated product of any design. It is pleaded as what the record shows: a system whose output is the same whether a Department replies, declines, or says nothing at all, because no part of it is required to assemble the whole. *Interregnum Nullificans* calls this condition by its name without attributing it to any actor's intent. This Saisine's accusation is that the State, not any one officer within it, is responsible for the absence of the mechanism, and that responsibility for an absent mechanism sits, under the Constitution, with the office that composes and coordinates the Government (Part III.B).

> ***On the scope of this Saisine.*** *This Saisine addresses the State's offices and the architecture that connects them. The record shows what each office received, what each office did, and what none of them was required to do together.*
>
> *The contradiction that this sequence produces is to be questioned and explored.*
>
> *The question of individual liability, including joint and several liability in tort for knowing contribution, is reserved, and the DFA internal file is the document that will bear on it. The matters below are set out at the level of the institutions.*

Thirteen acknowledgements have issued, and no determination. The State's own statutory design asks three departments for the inputs a determination needs, and assigns no body the task of assembling them.

II.B The logical contradiction at the centre of the record

The State's own National Strategic Risk Assessment process supplies the vocabulary this Saisine uses to state the contradiction precisely, and the author's own submission to the NSRA 2026 public consultation (October 9th, 2026) is cited here as that submission, not as independent authority.

A functioning system that recognises a risk moves it through five linked capacities: it must *recognise* a significant signal, *understand* how it behaves, *coordinate* the competences needed to assess it, *converge* on a determination, and *detect and correct* its own failures to do any of the foregoing. Failure at any link compromises the links after it. The record in Part II.A shows failure at every one. Signals were recognised and not understood as cross-departmental; where understood, no mechanism coordinated the three departments that between them hold the full picture; where coordination might have occurred, no node converged on a determination; and where the absence of a determination might have been detected, the State's own closures mistook the appearance of process, an acknowledgement, a reference number, a letter, for the substance the process exists to produce.

That substance is *traceable determination*: for any matter repeatedly and formally represented to Government, an identifiable point at which the system can say who considered it, on what evidence, under what authority, with what result and for what reasons. The record in *Interregnum Nullificans*, Annex A identifies thirteen acknowledgements and no determination. The distinction is not semantic. A State can receive information without evaluating it, acknowledge a proposal without testing it, identify a risk without integrating it into any assessment, and close a file administratively without ever determining the question the file was opened to answer. Four distinctions collapse when a system does this: information from knowledge, knowledge from assertion, assessment from acknowledgement, and determination from administrative closure. Every entry in Annex A sits on the wrong side of at least one of those distinctions.

The contradiction is this. The State cannot simultaneously (i) hold that export-control determinations require coordinated technical, foreign-policy and security input, which its own statutory architecture asserts by distributing those functions across three departments; (ii) decline to build or identify any mechanism that performs that coordination; and (iii) treat the absence of a determination, across twenty years and three successive regulatory regimes, as no one department's responsibility to resolve. A structure that requires coordination by its own design and supplies none cannot discharge itself by pointing, department by department, to the fact that coordination was never anyone's named job. That is not an answer to the question. It is a description of why the question has gone unanswered, offered as though it were a reason the question need not be answered at all.

II.C The Byrne paradox and the Burke-Byrne interference

The paradox is structural, not personal, and it is stated as such. Minister of State Thomas Byrne holds briefs across the Department of the Taoiseach, the Department of Foreign Affairs and Trade, and the Department of Defence, the three departments whose combined competence a dual-use determination requires. He has been briefed across all three. He does not hold the competent-authority function, which Regulation (EU) 2021/821 and the Control of Exports Act 2023 place in DETE. A single office-holder's presence across the three departments that hold the preconditions for an assessment, without presence in the department that holds the power to make it, is the fragmentation made visible in one person rather than resolved by it. The interference is architectural, not personal: no statute requires the officer with the broadest view of the preconditions to be the officer who decides, and none requires the officer who decides to consult the officer with that view.

II.D Storm Éowyn: the reasons that were not given

The facts are dated and are not disputed in this Saisine beyond what they themselves show. On January 24th, 2025, the Office of Emergency Planning described itself, in writing, as "a little swamped at the minute" with the response to Storm Éowyn. On June 1st, 2025, four months and eight days later, the same Office issued a letter concluding that the submitted Operations Research methodology was adequately addressed by methods already in use across the public service. That letter does not mention Storm Éowyn or the analytical question overall. A rebuttal filed on June 3rd,

2025, went unanswered. On February 4th, 2026, the Department of Defence closed its file by relying on the June 1st, 2025, letter without reference to the rebuttal.

No claim is made that the submitted material would have changed the management of Storm Éowyn, or any other event. The claim is narrower and does not require that one: an adequacy conclusion issued four months after an admitted capacity strain, concerning the very capacity the strain is said to have tested, and which does not mention the intervening event, is not a reasoned conclusion within the meaning the law gives that word. *Meadows v Minister for Justice* [2010] 2 IR 701 concerns the adequacy of reasons. The irrationality lies in the gap between the conclusion and what the conclusion was required to account for, not in any outcome the material might have produced.

II.E Why domestic remedies are structurally insufficient

A system that cannot determine also cannot, by the same defect, correct itself through its ordinary channels, because self-correction requires the same assembling mechanism the original determination required. Each of the thirteen acknowledgements in *Interregnum Nullificans* Annex A is a point at which the system might have detected its own failure and did not. In queueing terms, descriptively: thirteen arrivals across twenty-seven months and no departures is an arrival process with no service completions, in which a queue grows without bound. In earned-value terms, descriptively: cost was recorded, thirteen acknowledgements, against no earned value, since earned value is work accomplished against plan, and no determination was produced to measure. These are offered as descriptions, not as a finding that the State operates a queue or a project in the technical sense; they are the terms in which the pattern is precisely stated.

The deeper defect is that the system has no stopping rule. A sequential process that tests evidence against a threshold and halts, in one direction or the other, when the threshold is crossed is the ordinary design of any system meant to reach a decision. This one has none: acknowledgement can recur indefinitely without ever forcing a determination, because no accumulation of acknowledgements is, by any rule identified in the record, equivalent to a decision. A system with no stopping rule never decides against acting. It keeps observing. That is the structural reason the Ombudsman track (OMB-260331-CSD014), the parliamentary track and the ordinary correspondence track have each, independently, reproduced the same output: each is itself a node inside the system that lacks the stopping rule, not a mechanism external to it. Only a body with the power to compel a determination, or to quash a closure and require one, sits outside that loop. That is why this Saisine reserves, rather than abandons, the judicial track (Part III.B, Part V).

III. Constitutional and Statutory Law

III.A The No-Interregnum Axiom

First limb. The Government is responsible to Dáil Éireann (Article 28.4.1°) and is collectively responsible for the Departments of State (Article 28.4.2°). An obligation that arises within one Department's administration is, on this limb, an obligation of the Government collectively, and its non-performance is not a fact a Government can locate inside one Department and treat as closed to the others.

Second limb. The Taoiseach may at any time request a member's resignation, with the President empowered to terminate the appointment on the Taoiseach's advice if refused (Article 28.9); on the Taoiseach's own resignation, the Government is deemed to have resigned and carries on until successors are appointed (Article 28.11.1°); the Tánaiste acts for the Taoiseach when authorised (Article 28.6.2°–3°) [consolidated text to be checked before quotation]. An obligation vested in the office of a Minister, or in the Government collectively, does not lapse because the individual who held that office at the time of its creation no longer holds it. The office carries the obligation forward; the person who next holds it inherits it, not as a matter of personal succession, but because the Constitution vests the obligation in the office.

Third limb: the No-Interregnum corollary. Mandamus runs against the constitutional officer in post. It is not defeated by a plea that the obligation arose under a predecessor's tenure; the respondent is the office in which the unperformed obligation is now vested. The Petitioner reserves the application of this corollary to the Taoiseach, as head of the Government in which the unperformed 2009 ministerial undertaking, given by the individual who now holds that office, is currently vested. No proceedings are on foot. A letter addressed to the Taoiseach will precede any application.

III.B The Cabinet

The cabinet serves at the Taoiseach's instance. This is stated precisely, because it is the Government's own constitutional structure and not a characterisation imposed on it.

The President appoints the other members of the Government on the nomination of the Taoiseach, with the Dáil's prior approval (Article 13.1.2°). The Taoiseach nominates the Tánaiste (Article 28.6.1°). The Taoiseach may at any time, for reasons that seem to him sufficient, request a member's resignation, and the President terminates the appointment on his advice if the member refuses (Article 28.9.4°; see also 28.9.2°–3°). On the Taoiseach's own resignation, the Government is deemed to have resigned and carries on only until successors are appointed (Article 28.11.1°). The Government is responsible to the Dáil (Article 28.4.1°) and collectively responsible for the Departments of State (Article 28.4.2°).

Two limits are stated so that this argument cannot fairly be dismissed as overreach. The Taoiseach holds office by the Dáil's continuing support (Article 28.10); he does not govern by personal prerogative. And a statutory function sits with the office-holder a statute names: the licensing function sits with the Minister for Enterprise, Tourism and Employment, delegated by S.I. 241/2025, and the Taoiseach does not hold, and this Saisine does not ask him to exercise, the licensing decision. What the office holds is the means to compose, convene and coordinate the Government that houses the function.

From that structure, five propositions follow.

1. Silence in any one Department is silence inside a Government the Taoiseach composes, and for which the Government is collectively responsible. The State cannot treat Defence's foreclosure, DFA's unperformed undertaking, and DETE's unaudited restatement as three local matters answerable by three Departments in isolation. They are three instances of one Government's failure to assemble a determination it is collectively responsible for producing.
2. Where a statute places a function in one officer but its exercise needs inputs that officer cannot reach, the delegating authority must supply the means. This rests on the structure of the delegation itself, not on any provision of Regulation (EU) 2021/821 governing cooperation between Member States. The office best placed to supply that means, without new legislation, is the Taoiseach's, because it is the office that composes, convenes and coordinates the Departments whose inputs the determination requires. The record shows the means were never supplied.
3. The rotation did not reset the obligation. The office passed from Mr Martin to Mr Varadkar to Mr Harris and back to Mr Martin between 2020 and the present, reconstituting the Government three times, in December 2022, April 2024 and January 2025, each time under Article 28.11.1°. Rotation proceeded by political agreement; its constitutional mechanism was resignation and re-nomination. The record identifies no handover of this matter at any of the three reconstitutions. A reconstitution is not a reset. Under the first limb of the Axiom, the obligation travels with the function it attaches to, not with the individual who happened to hold the function when the obligation arose.
4. The present Taoiseach held office, continuously, at every material date. From June 19th, 2024, the earliest date in *Interregnum Nullificans* Annex A, Mr Martin held either the office of Taoiseach or the office of Tánaiste with responsibility for Foreign Affairs and Defence. This is stated as a fact about the offices one individual held across the record, not as an assertion about what crossed his desk in either capacity. He is not pleaded as having presided personally over DOD-MO-01201-2025, which issued from the Department of Defence over Mr Andrew Beltran's signature; he is pleaded as heading the Government under which that closure issued, and as the individual who, in 2009, personally gave the undertaking this record concerns.
5. The accusation is addressed to the office, not to the officer's intentions. No claim is made that the Taoiseach can direct DETE's licensing determination, and none is made here. The

claim is that he, and the Government he composes, owe the State's answer to a narrower question: why no coordinating mechanism exists, twenty years after the obligation arose and sixteen years after his own Department first received it, and that the obligation to supply that answer is vested in the office he now holds, independently of whether he held it when the obligation was created.

III.C The frameworks applicable to the record

The following table applies the legal and constitutional frameworks engaged by the record, corrected against primary text and against citations the record previously used incorrectly. Ratings mark the strength of the ground as presently supported, not a finding by any court.

Instrument	What it requires	What the record shows	Status
Constitution, Art. 28.4.1°–28.4.2°	Government responsible to the Dáil; collectively responsible for the Departments of State	No Department has accounted to the Dáil for twenty years without a determination on a matter three Departments jointly hold	HIGH — Axiom first limb
Constitution, Art. 28.9, 28.11.1°, 28.6.2°–3°	Resignation, re-nomination and deemed continuity of the Government; the Tánaiste acting for the Taoiseach	Three reconstitutions since 2020; no handover of this matter is shown at any of them	HIGH — Axiom second and third limbs; apex argument
Constitution, Art. 40.3 (fair procedures)	The State shall, by its laws, defend and vindicate as far as practicable the rights of the citizen, including a right to fair procedures in administrative decision-making	A closure letter (DOD-MO-01201-2025) relied on a conclusion formally rebutted and never defended, without reference to the rebuttal	HIGH, subject to *Meadows* reach [CONFIRM]; replaces the retired Art. 15.2.1 petition ground
Ombudsman Act 1980, s.4(2)(b)(i), (iii), (vi), (vii)	Grounds: action without proper authority; negligence or carelessness; undesirable administrative practice; otherwise contrary to fair or sound administration	The 2009 undertakings unperformed; the 4 February 2026 closure relied on an unanswered rebuttal; no audit on the 2024 commencement	HIGH — pleaded fully in OMB-260331-CSD014; this Saisine does not duplicate that pleading

Instrument	What it requires	What the record shows	Status
Houses of the Oireachtas (Inquiries, Privileges and Procedures) Act 2013, s.92	A privilege and immunity provision; s.92(4) governs whether a non-member's document remains a committee document	The 9 July 2026 JCFAT letter cites s.92 generally, with no subsection, to end engagement generally, not to determine the status of one document	HIGH as a ground for scrutiny of the Committee's own procedure; not a correspondence-management power
Regulation (EU) 2021/821, Art. 23(1)(a), together with Control of Exports Act 2023, s.3	Designation of the national competent authority	DETE designated and acting as competent authority throughout; no determination on this corpus across three successive regimes (1334/2000 → 428/2009 → 2021/821)	CRITICAL — the central regulatory ground
Regulation (EU) 2021/821, implied coordination (structure of the S.I. 241/2025 delegation)	Where a statutory delegation requires inputs the delegate cannot reach alone, the delegating authority must supply a coordinating mechanism	Three departments hold the inputs a determination needs; none is required by statute to coordinate with the others	CRITICAL — does not rest on Art. 23(2) (a Member State cooperation provision, not a domestic coordination duty) or on Art. 12(5) (sets no clock)
Charter of Fundamental Rights, Art. 41	The good-administration principle, binding on bodies implementing Union law	Thirteen acknowledgements; no determination, across a regime the State implements	MODERATE — pleaded as the good-administration principle applicable when implementing Union law, not as a provision directly enforceable against a national

Instrument	What it requires	What the record shows	Status
			authority in its own right
Charter of Fundamental Rights, Art. 47	Right to an effective remedy	No body has examined the merits across twenty years; Part II.E sets out why the ordinary domestic channels have not supplied one	HIGH
Commission White Paper on Export Controls, January 2024 (COM(2024) 25)	Addresses coordination and consistency in implementation across Member States [scope to be confirmed against the text]	Ireland's architecture, on this record, exhibits the coordination gap the White Paper addresses	MODERATE, pending text confirmation; the weaker, supportable form is used until then
Art. 4(3) TEU (sincere cooperation)	Member States must facilitate the Union's objectives	Ireland held the Council Presidency from 1 July 2026, chairing dual-use proceedings against a domestic record with no determination on this corpus	MODERATE — context, not an independent cause of action
Negligence by calculated omission (common law)	A public authority may be liable where a calculated omission produces foreseeable harm	*Glencar Explorations plc v Mayo County Council* [2002] 1 IR 84 is cited by earlier drafts of this record for this proposition; the authority may be adverse on this specific point	FLAGGED, not relied upon — not pleaded as a ground pending verification; retained here only to record that it is not abandoned by oversight
Misfeasance in public office	State of mind: knowledge of illegality, or reckless indifference	A personal briefing and a personal undertaking supply knowledge; non-performance supplies the omission; the state-of-mind element depends on what the DFA	Hypothesis B; not pleaded as established. Reserved to the High Court track, and only

Instrument	What it requires	What the record shows	Status
		internal file shows about the reasons for the routing and the absence of follow-up	if the file supports it
Order 84 RSC (mandamus, certiorari)	High Court power to compel performance of a refused public duty, and to quash a decision	DETE: mandamus reserved, pending the s.13 request's outcome. The Taoiseach: mandamus reserved under the No-Interregnum corollary, a letter to precede any application. The 4 February 2026 closure and the JCFAT letter of 9 July 2026: both out of time on their face; an extension would be required	CRITICAL as a reserved relief; no application is presently before the Court

Two rows present in earlier drafts of this record, asserting an ongoing tort of conversion and a constitutional fiduciary duty over the physical materials, are not restated here. Custody of the 26 kilograms is, on the present record, unresolved: it holds three incompatible accounts, retained, lost, or sequestered, and does not establish which is correct (*Interregnum Nullificans*, Part VIII). A claim resting on unlawful retention cannot be pleaded with confidence until custody is established; the question is listed among the asks (v19b, Part X.1) and is not converted into a finding here.

V. The European and Parliamentary Tier

The Rule of Law question. Commissioner Michael McGrath holds the Democracy, Justice, Rule of Law and Consumer Protection portfolio. He is on notice of this record. No claim is made about his personal conduct or intentions. The question put to his portfolio is institutional: whether a Member State presently chairing the Council and implementing Regulation (EU) 2021/821 can sustain, consistently with Article 2 TEU, a twenty-year absence of determination on a matter its own statutory architecture requires it to coordinate. That is a question for the portfolio to answer, not a finding this Saisine makes for it.

The Commission's Article 26(4) evaluation. The evaluation window opened on September 10th, 2026, and runs to September 10th, 2028. No claim is made that Ireland's compliance record is the object of that evaluation; the record is offered to it as a fact available for its consideration, under the public consultation which closed October 15th, 2026.

DTCI. Raised here as a question, not a finding: whether the pattern this record documents amounts to a disguised technology-control interest, in the specific sense the Commission's own frameworks use that term, is a question for the institutions equipped to answer it, not an inference this Saisine draws for itself.

CJEU. No proceedings are on foot. An Article 267 reference requires a national court to make it; Article 259 TFEU runs between Member States; Articles 263 and 265 run against Union institutions. Any question for the CJEU arising from this record is reserved pending solicitor review and, where applicable, the posture of a national court seised of the matter.

PETI. Informally filed through the Secretariat, March 2026 under Article 227 TFEU.

Active References and Deadlines

- *Interregnum Nullificans* v20d (companion record), with this Saisine re-based on it in full.
- Order 84 RSC: leave on S-2026-0018-FA&T (JCFAT, July 9th, 2026) will not be sought; the three-month period lapsed on October 7th, 2026 without an application, and any future application would need an extension supported by a dated chronology of delay. A DETE mandamus is reserved; the 21-day period following the Act s.13 request of September 10th, 2026 ran out on October 1st, 2026. A Taoiseach mandamus is reserved under the No-Interregnum corollary (Part III.A); a letter to the Taoiseach will precede any application.
- NSRA submission, October 9th, 2026, cited throughout Part II.B and Part II.E as the author's own submission to the National Strategic Risk Assessment 2026 public consultation.
- Commission public consultation under Regulation (EU) 2021/821: closed October 15th, 2026 (23:59 CEST). Submission was sent referencing the timeline and attaching the *Interregnum Nullificans*, and *Tairisinct Mheinhart* documents.

Tá an taifead seo fós oscailte.